

1
2
3 Christopher D. Mandarich SB 220693
4 Teona Pipia SB 343337
5 Martin Weingarten SB 201906
6 Sarkis Karayan SB 316926
7 **MANDARICH LAW GROUP, LLP**
8 P.O. Box 109032 Chicago, IL 60610
9 Telephone: 877.285.4918
10 Facsimile: 818.888.1260
11 *Attorneys for Plaintiff: LVNV Funding LLC*

Electronically FILED by
Superior Court of California,
County of Los Angeles
4/30/2025 3:09 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By V. Banuelos, Deputy Clerk

9
10 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
11 LIMITED CIVIL JURISDICTION

12 LVNV Funding LLC,
13 Plaintiff,

Case No. 24CHLC00669

14
15 vs.

**DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT TO
CIVIL CODE § 1788.60**

16 Adrian A Alcala, an individual, et al.,
17 Defendant.
18

19 The declaration is attached hereto and hereby
20 incorporated herein.
21
22
23
24
25
26
27
28

SUPERIOR COURT OF California, COUNTY OF LOS ANGELES
LIMITED CIVIL JURISDICTION

LVNV Funding LLC,

Plaintiff,

vs.

Adrian A Alcala , et al.,

Defendant(s).

Case No. 24CHLC00669

DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT
TO CIVIL CODE § 1788.60

I, the undersigned, declare as follows:

1. I am an authorized representative for LVNV Funding LLC ("Plaintiff") and RESURGENT CAPITAL SERVICES, LP (RCS), servicer of this account on behalf of Plaintiff, and I am authorized on Plaintiff's and RCS's behalf to make the statements, representations and averments herein.
2. I am a competent person over eighteen years of age and make the statements herein based upon my personal review of the records pertaining to this account. Plaintiff is the current owner of the obligation sued upon, and was assigned all the rights, title and interest to Defendant's account XXXXXXXXXXXXXXX7786 (hereinafter "the Account").
3. Plaintiff purchases portfolios of delinquent accounts from either the original creditor or a subsequent purchaser of the account. As part of its operations, RCS, as servicer for Plaintiff, operates and maintains computer systems into which electronic records and information received from the seller in response to the sale and assignment communication regarding the individual accounts are integrated.

- 1 4. I am familiar with and trained on the mode and method by which Plaintiff's business records are created and
2 maintained. The records are kept in the regular course of business. It was in the regular course of business for a
3 person with knowledge of the act or event recorded to make the record or data compilation, or for a person
4 with knowledge to transmit information thereof to be included in such record. In the regular course of business,
5 the record or compilation is made at or near the time of the act or event.
- 6 5. On or about 06/28/2023, LVNV Funding LLC became the successor in interest to this Account. The attached
7 account records were acquired and incorporated into Plaintiff's permanent business records as a result of
8 Plaintiff's purchase of the Account. These records are kept in the regular course of business on behalf of Plaintiff
9 and, along with other electronic records provided at purchase, are Plaintiff's primary source of business records
10 for this Account.
- 11 6. The accuracy of such records is relied upon by Plaintiff and/or its agents in purchasing and collecting this
12 Account. Federal law required the original creditor to send monthly statements to the Defendant at the address
13 at which the Defendant advised that he/she was residing at the time that he/she established the account, or to
14 any subsequent address provided by the Defendant.
- 15 7. This Account was purchased after 01/01/2014 and, therefore, is subject to California Civil Code Section
16 1788.60.
- 17 8. In accordance with California Civil Code section 1788.58(a)(3-8), LVNV Funding LLC's records show the
18 following relevant information concerning the Account.
- 19 a. Plaintiff is the sole owner of the Account.
- 20 b. The Account was opened on 04/25/2012 and charged off on 06/26/2020 with a balance of \$3,008.91.
- 21 c. LVNV Funding LLC records show that the balance of \$3,008.91 remains due and owing. Plaintiff is
22 seeking to recover only that portion of the charge-off balance that remains due and owing.
- 23 d. The last payment posted to the Account on 03/24/2020.
- 24 e. The charge off creditor name and address at the time of charge off:
25 Citibank, N.A.
26 5800 South Corporate Place, Sioux Falls, SD, 57108
- 27 f. The charge off Account number associated with the debt at time of charge off was
28 XXXXXXXXXXXXX7786.

g. Defendants name and last known address as it appeared in the charge off creditor's records:

ADRIAN A ALCALA

15814 REX CT SANTA CLARITA CA 913870000

h. The complete chain of title including Citibank, N.A. and all post charge off purchasers of the debt are as follows:

Date Of Transfer	Owner/Creditor Name	Owner/CreditorAddress
6/28/2023	Citibank, N.A.	5800 South Corporate Place Sioux Falls SD 57108
6/28/2023	Resurgent Acquisitions LLC C/O Resurgent Capital Services LP	P.O. Box 10466 Greenville SC 29603
	LVNV Funding LLC C/O Resurgent Capital Services LP	P.O. Box 10466 Greenville SC 29603

9. LVNV Funding LLC's records state that LVNV Funding LLC or its agents made demand for payment of the balance herein prior to making this affidavit and Defendant(s) failed to make full payment of the amount owed on the Account.

10. Attached hereto as Exhibits A, B, and C are the account records I reviewed in executing the affidavit that relate to the Account and/or payment(s) received.

Exhibit A: Chain of Title and Seller Data Document - Establishing the facts required under Civil Code section 1788.58(a)(3) and (8)

Exhibit B: Last Monthly Billing Statement Recording a Purchase, Last Payment, or Balance Transfer - Establishing the facts required under Civil Code section 1788.52 (b) and/or 1788.58(a)(5)

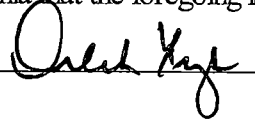
Exhibit C: Billing Statement(s) - Establishing the facts required under Civil Code section 1788.58 (a)(4) and (6)

1 11. The documents attached hereto are true and correct copies of the originals, being a reproduction of the records
2 on file on behalf of Plaintiff based upon my review, except to the extent that confidential and privileged
3 information and/or personal identifying information is omitted or redacted as required by local rules, and
4 applicable state and federal laws.

5 12. If called upon to testify as a witness thereon, I could and would competently testify as to all the facts stated
6 herein.

7
8 I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

9 Dated: 04/11/2025

10 
Arlah Klugh

11 RESURGENT CAPITAL SERVICES,

12 as authorized representative of

13 LVNV Funding LLC
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

EXHIBIT A

BILL OF SALE AND ASSIGNMENT
2Q2023 Brands and Costco Inventory Bulk - Lot 2 Accounts

THIS BILL OF SALE AND ASSIGNMENT dated June 28, 2023, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 (the "Bank") to Resurgent Acquisitions LLC, organized under the laws of the state of Delaware, with its headquarters/principal place of business at 55 Beattie Place, Suite 110, Greenville, SC 29601 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated January 12, 2023 and Addendum No. 7 dated June 26, 2023, between Buyer and the Bank as amended, restated, or otherwise modified from time to time (the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts described in Exhibit 2 and the final electronic file.

Citibank, N.A.

By: Brandy Reardon
(Signature)

Name: Brandy Reardon

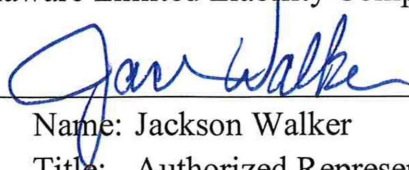
Title: Authorized Party

Transfer and Assignment

Resurgent Acquisitions LLC ("RALLC"), without recourse, to the extent permitted by applicable law, hereby transfers, sells, assigns, conveys, grants and delivers to LVNV Funding LLC ("LVNV") all of its right, title and interest in and to the receivables and other assets (the "Assets") identified on Exhibit A, in the Receivable File dated June 19, 2023 delivered by Citibank, N.A. on June 28, 2023 for purchase by RALLC on June 28, 2023. The transfer of the Assets included electronically stored business records.

Dated: **June 28, 2023**

Resurgent Acquisitions LLC
a Delaware Limited Liability Company

By: 

Name: Jackson Walker

Title: Authorized Representative

Dated: **June 28, 2023**

LVNV Funding LLC
a Delaware Limited Liability Company

By: 

Name: Daniel Picciano

Title: Authorized Representative

Exhibit A

Receivables File

06.28.23 Brands-Costco-Inventory-Bulk-Lot-2-0623

Transfer Group	Portfolio	Transfer Batch
931164	42032	N/A

FileName	LineNumber	ACCOUNTNUMBER	SALESEGMENT	PRODUCTIDENTIFIERCODE
Brands-Costco-Inventory-Bulk-Lot-2-0623	32453	[Redacted]9842	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32454	[Redacted]9972	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32455	[Redacted]9296	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32456	[Redacted]0282	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32457	[Redacted]3583	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32458	[Redacted]1111	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32459	[Redacted]8814	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32460	[Redacted]9572	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32461	[Redacted]7201	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32462	[Redacted]0238	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32463	[Redacted]7786	BANK	186
Brands-Costco-Inventory-Bulk-Lot-2-0623	32464	[Redacted]8925	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32465	[Redacted]4063	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32466	[Redacted]9584	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32467	[Redacted]5821	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32468	[Redacted]0423	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32469	[Redacted]4412	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32470	[Redacted]5145	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32471	[Redacted]7136	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32472	[Redacted]0274	[Redacted]	[Redacted]
Brands-Costco-Inventory-Bulk-Lot-2-0623	32473	[Redacted]0208	[Redacted]	[Redacted]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
0.00
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
ADRIAN A
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
ALCALA
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

[illegible]

EXHIBIT B

ADRIAN A ALCALA

Member Since 2012 Account number ending in: 7786

Billing Period: 02/29/20-03/27/20

www.citicards.com

Customer Service 1-866-458-4271

TTY-hearing-impaired services only 1-800-325-2865

BOX 6500 SIOUX FALLS, SD 57117

MARCH STATEMENT

Minimum payment due:	\$445.66
New balance as of 03/27/20:	\$2,935.66
Payment due date:	04/24/20

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	4 year(s)	\$3,502

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$140.00 and overlimit \$235.66. You're in a payment program; please pay at least the minimum payment due or the amount listed in the terms and agreement letter sent to you at time of enrollment.

Account Summary

Previous balance	\$2,913.00
Payments	-\$70.00
Credits	-\$0.00
Purchases	+\$70.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$22.66
New balance	\$2,935.66

Credit Limit

Revolving Credit limit	\$2,700
Includes \$600 cash advance limit	

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$445.66
New balance	\$2,935.66
Payment due date	04/24/20

Amount enclosed:

Account number ending in 7786

000000 PW 44 A 0

ADRIAN A ALCALA
15814 REX CT
SANTA CLARITA CA 91387-1410

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

ADRIAN A ALCALA

TTY-hearing-impaired services only 1-800-325-2865

Account Summary

Trans. date	Post date	Description	Amount
----------------	--------------	-------------	--------

Payments, Credits and Adjustments

	03/24	PAYMENT THANK YOU	-\$70.00
--	-------	-------------------	----------

Standard Purchases

02/24	02/29	1022420RETURN CHECK A -NSF-INSUFFICIENT	\$70.00
-------	-------	---	---------

Fees charged

Total fees charged in this billing period	\$0.00
--	---------------

Interest charged

Date	Description	Amount
03/27	INTEREST CHARGED TO STANDARD PURCH	\$22.66

Total interest charged in this billing period	\$22.66
--	----------------

2020 totals year-to-date

Total fees charged in 2020	\$0.00
Total interest charged in 2020	\$73.00

Interest charge calculation

Days in billing cycle: 28

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	9.90%	\$2,983.94 (D)	\$22.66
ADVANCES			
Standard Adv	9.90%	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 04/17/2020 to allow enough time for regular mail to reach us.

©2018 Citibank, N.A.

Citi, Citi with Arc Design are registered service marks of Citigroup Inc.

EXHIBIT C

Citi PremierPass®/Expedia® Card – Elite Level



ADRIAN A ALCALA

Member Since 2012 Account number ending in: 7786

Billing Period: 05/29/20-06/26/20

www.citicards.com

Customer Service 1-866-458-4271

TTY-hearing-impaired services only 1-800-325-2865

BOX 6500 SIOUX FALLS, SD 57117

JUNE STATEMENT

Minimum payment due:	\$3,008.91
New balance as of 06/26/20:	\$3,008.91
Payment due date:	06/26/20

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,009

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$350.00 and overlimit \$308.91. You're in a payment program; please pay at least the minimum payment due or the amount listed in the terms and agreement letter sent to you at time of enrollment.

Account Summary

Previous balance	\$2,985.34
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$23.57
New balance	\$3,008.91

Credit Limit

Revolving Credit limit	\$2,700
Includes \$600 cash advance limit	

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$3,008.91
New balance	\$3,008.91
Payment due date	06/26/20

Amount enclosed:

Account number ending in 7786

000000 PW 44 A 0

ADRIAN A ALCALA
15814 REX CT
SANTA CLARITA CA 91387-1410

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

ADRIAN A ALCALA

TTY-hearing-impaired services only 1-800-325-2865

Account Summary

Trans. date	Post date	Description	Amount

Fees charged

Total fees charged in this billing period	\$0.00
---	---------------

Interest charged

Date	Description	Amount
06/26	INTEREST CHARGED TO STANDARD PURCH	\$23.57

Total interest charged in this billing period	\$23.57
---	----------------

2020 totals year-to-date

Total fees charged in 2020	\$0.00
Total interest charged in 2020	\$146.25

Interest charge calculationDays in billing cycle: **29**Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	9.90%	\$2,996.70 (D)	\$23.57
ADVANCES			
Standard Adv	9.90%	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment will not be reflected until your next statement.

©2018 Citibank, N.A.

Citi, Citi with Arc Design are registered service marks of Citigroup Inc.